UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF PENNSYLVANIA

Bob Harvie, et al., Plaintiffs, v. Defending America PAC, Inc., et al., Defendants.	: : : : :	CIVIL ACTION No. 2:26-cv-05544

ORDER

AND NOW, on this _____ day of _____, 2026, upon consideration of Defendants' Motion to Dismiss the Complaint and Application for attorneys' fees and costs pursuant to Pennsylvania's Uniform Public Expression Protection Act, 42 PA C.S. § 8340.18, and any response thereto, it is hereby ORDERED and DECREED that:

1. Defendants' Motion to Dismiss is GRANTED and Plaintiffs' Complaint is DISMISSED with prejudice;
2. Defendants' application for attorneys' fees and costs is GRANTED;
3. Defendants shall file a Statement of Fees and Costs within fourteen (14) days of this Order, and Plaintiffs shall pay the amount set forth therein, within fourteen (14) days of the filing of that Statement.

BY THE COURT:

_____
J.

UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF PENNSYLVANIA

Bob Harvie, et al., Plaintiffs, v. Defending America PAC, Inc., et al., Defendants.	: : : : :	CIVIL ACTION No. 2:26-cv-05544

DEFENDANTS' MOTION TO DISMISS THE COMPLAINT UNDER FED. R. CIV. P. 12(b)(1) & 12(b)(6) AND APPLICATION FOR ATTORNEYS' FEES AND COSTS PURSUANT TO 42 PA C.S. § 8340.18

AND NOW comes Defendants Defending America PAC, Inc. ("DAP") and Chris Pack ("Mr. Pack") (collectively, "Defendants"), by and through the undersigned counsel, Bochetto & Lentz, P.C. ("B&L"), hereby submit Defendants' Motion to Dismiss the Complaint filed by Plaintiffs Bob Harvie ("Harvie") and Bob Harvie for Congress (the "Committee") (collectively, "Plaintiffs") pursuant to Fed. R. Civ. P. 12(b)(1) for lack of standing, Fed. R. Civ. P. 12(b)(6) for failure to state claims for defamation, and false light invasion of privacy. Defendants hereby apply for fees and costs under Pennsylvania's Uniform Public Expression Protection Act, 42 PA C.S. § 8340.18. ("Anti-SLAPP Act"). As set forth more fully in the accompanying Memorandum of Law in support hereof, which Defendants incorporate by reference as though set forth in its entirety herein, the Motion to Dismiss should be granted, Plaintiffs' Complaint should be dismissed, with prejudice, and fees and costs should be awarded.

WHEREFORE, Defendants Defending America PAC, Inc. and Chris Pack respectfully request this Honorable Court grant this Motion to Dismiss the Complaint Under Fed. R. Civ. P. 12(b)(1) & 12(b)(6) and Application for Attorneys' Fees and Costs Pursuant to 42 Pa. C.S. § 8340.18 against Plaintiffs Bob Harvie and Bob Harvie for Congress and dismiss Plaintiffs' Complaint with prejudice.

Defendants further request this Honorable Court grant all costs and fees associated with this litigation, along with any other such relief which this Court deems to be in the interest of justice.

Date: October 6, 2026

Respectfully submitted,

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CERTIFICATE OF SERVICE

I, George Bochetto, Esquire, hereby certify that on this 6th day of October, 2026, I caused the foregoing Motion to Dismiss and accompanying memorandum of law to be served on counsel for all parties that have appeared via the Court's ECF filing system.

Date: October 6, 2026

/s/ George Bochetto
George Bochetto, Esquire
Local Counsel for Defendants
Defending America PAC, Inc. and Chris Pack

UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF PENNSYLVANIA

Bob Harvie, et al.,	:	
Plaintiffs,	:	
v.	:	CIVIL ACTION
Defending America PAC, Inc., et al.,	:	No. 2:26-cv-05544
Defendants.	:	

DEFENDANTS' MEMORANDUM OF LAW IN SUPPORT OF THEIR MOTION TO DISMISS THE COMPLAINT UNDER FED. R. CIV. P. 12(b)(1) & 12(b)(6) AND APPLICATION FOR ATTORNEYS' FEES AND COSTS PURSUANT TO 42 PA C.S. § 8340.18

TABLE OF CONTENTS

I. Introduction 1

II. Legal Argument 1

A. Legal Standard 1

B. Bob Harvie for Congress Lacks Article III Standing and Must Be Dismissed Pursuant to Rule 12(b)(1) 3

III. Conclusion 4

I. INTRODUCTION

This matter arises from Plaintiffs Bob Harvie ("Harvie") and Bob Harvie for Congress' (the "Committee") (collectively, the "Plaintiffs") use of lawfare tactics to silence their political opponents during Harvie's campaign for the United States House of Representatives in Pennsylvania's 1st Congressional District. Defendants Defending America PAC, Inc. and Chris Pack (collectively, the "Defendants") have done nothing more than exercise their first amendment right to criticize Harvie's candidacy. In turn, Plaintiffs have chosen to weaponize the legal system by bringing this frivolous and strategic lawsuit against of public participation (SLAPP) enunciated by our legislature.

Contrary to Plaintiffs' averments, this is not an attempt to damage Harvie's reputation in his community. Rather, Defendants are providing relevant information regarding his background to the electorate in his congressional district. Plaintiffs, in a blatant attempt to conceal Harvie's past from voters, stifle the embarrassing revelations about him, and deprive the people of this crucial information, initiated this litigation against Defendants to silence their protected political speech. As public figures, Congressional candidates are subject to significant and intense scrutiny, including their background and history, as well as their interactions with law enforcement and the legal system, as they are matters of public concern. To make matters worse for Plaintiffs, they fail to plead a single fact asserting the Committee suffered any individualized harm sufficient to instill Article III standing.

The Eastern District is not a playground for allegedly insulted Parties to restrict free speech, and this Court should decline the invitation to do so. Accordingly, and as set forth more fully below, the Complaint should be dismissed under Fed. R. Civ. P. 12(b)(1) and 12(b)(6) and fees and costs should be awarded under the Anti-SLAPP Act.

II. LEGAL ARGUMENT

A. Legal Standard

The standard under Fed. R. Civ. P. 12(b)(6) is well settled:

> An action may be dismissed if fail[s] to state a claim upon which relief can be granted. At the motion to dismiss stage, the Court must accept factual allegations as true, but it is not compelled to accept unsupported conclusions and unwarranted inferences, or a legal conclusion couched as a factual allegation. To survive a motion to dismiss, a complaint must contain sufficient factual matter . . . to state a claim to relief that is plausible on its face. A claim is facially plausible when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged. The complaint must show more than a sheer possibility that a defendant has acted unlawfully, and the factual allegations must be enough to raise a right to relief above the speculative level.

Monge v. Univ. of Pennsylvania, Civ. A. No. 22-2942, 2023 U.S. Dist. LEXIS 11212, at *9 (E.D. Pa. Jan. 23, 2023) (citations and quotations omitted). Notably, "a court need not credit a complaint's 'bald assertions' or 'legal conclusions' when deciding a motion to dismiss." *Morse v. Lower Merion Sch. Dist.*, 132 F.3d 902, 906 (3d Cir. 1997) (internal citation omitted). A court, therefore, cannot "assume that the [plaintiff] can prove facts that it has not alleged" or accept as true "unsupported conclusions and unwarranted inferences." *Pittsburgh v. West Penn Power Co.*, 147 F.3d 256, 263, n. 13 (3d Cir. 1998).

Further, a facial attack "contests the sufficiency of the pleadings," and the Court applies "the same standard of review it would use in considering a motion to dismiss under Rule 12(b)(6) . . ." *Constitution Party of Pa. v. Aichele*, 757 F.3d 347, 357-58 (3d Cir. 2014). Even on facial attack, conclusory assertions of injury are insufficient. *In re Schering Plough Corp. Intron/ Temodar Consumer Class Action*, 678 F.3d 235, 243-44 (3d Cir. 2012); *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009).

B. Bob Harvie for Congress Lacks Article III Standing and Must Be Dismissed Pursuant to Rule 12(b)(1)

Plaintiffs' Complaint must be dismissed as facially insufficient to the extent it asserts claims on behalf of the Committee, as Plaintiffs have not pled a single fact asserting individualized harm suffered by the Committee, it lacks standing to bring this litigation. Article III of the United States Constitution limits federal judicial power to "cases" and "controversies," and "the core component of standing is an essential and unchanging part of" that limitation. *Lujan v. Defenders of Wildlife*, 504 U.S. 555, 560 (1992). Standing is therefore jurisdictional and, "without jurisdiction the court cannot proceed at all in any case." *Steel Co. v. Citizens for a Better Env't*, 523 U.S. 83, 94 (1998) (additional citation omitted). The Complaint fails to state a claim upon which relief can be granted, the Committee has failed to plead facts sufficient to establish Article III standing, and Plaintiffs cannot cure those deficiencies through conclusory allegations or unsupported inferences.

The burden of establishing standing rests solely with Plaintiffs. The "failure to allege the elements of standing means that [federal courts] lack jurisdiction to adjudicate their claims." *Finkelman v. Nat'l Football League*, 810 F.3d 187, 203 (3d Cir. 2016). The "irreducible constitutional minimum" of standing consists of three elements. *Lujan*, 504 U.S. at 560. Plaintiffs must demonstrate they have (1) suffered an injury in fact; (2) that is traceable to the defendant's challenged conduct (causation); and (3) that is likely to be redressed by a favorable decision of the court (redressability). *Friends of the Earth, Inc. v. Laidlaw Env't'l. Servs., Inc.*, 528 U.S. 167, 180–81 (2000). Each Plaintiff "generally must assert his own legal rights and interests, and cannot rest his claim to relief on the legal rights or interests of third parties." *Warth v. Seldin*, 422 U.S. 490, 499 (1975).

Crucially, each Plaintiff's standing is assessed on an individual basis. "[S]tanding is not dispensed in gross. To the contrary, a plaintiff must demonstrate standing for each claim he seeks to press and for each form of relief that is sought. The same principle applies when there are multiple plaintiffs." *Town of Chester, N.Y. v. Laroe Ests., Inc.*, 581 U.S. 433, 439 (2017) (cleaned up); see also *Schering Plough*, 678 F.3d at 245.

III. CONCLUSION

For the foregoing reasons, the Complaint should be dismissed pursuant to Rule 12(b)(1) as to Bob Harvie for Congress because it lacks Article III standing and pursuant to Rule 12(b)(6) because the Complaint fails to state a claim. Fees and costs should therefore be awarded to Defendants pursuant to Pennsylvania's Anti-SLAPP Act.

Date: October 6, 2026

Respectfully submitted,

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